

**JUSTIFICATION AND APPROVAL FOR OTHER THAN FULL AND
OPEN COMPETITION
OVERSEAS CONTRACTING ACTIVITIES**

1. Identification of the agency and the contracting activity.

I recommend that Embassy Abu Dhabi use other than full and open competition for the acquisition of 29 iPhones and accessories at the request of the Office of Defense Partnership (ODP). The estimated cost is \$31,000.00.

2. Nature and/or description of the action being approved.

Approval is sought for other than full and open competition for the purchase of 29 iPhones and accessories as detailed in section 3.

3. A description of the supplies or services required to meet the agency's needs.

Total 29 iPhones – (iPhone17 Promax Silver -2Qty & iPhone17 Black -27 Qty) and compatible accessories to meet the operational needs of the Office of Defense Partnership (ODP). These devices must run on the iOS operating system to integrate with existing infrastructure and security protocols.

4. An identification of the statutory authority permitting other than full and open competition.

[X] 41 U.S.C.3304(a)(1) - 6.302-1 Only one responsible source and no other supplies or services will satisfy agency requirements.

5. A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

iOS is the mandated operating system to ensure compatibility with existing Department of State requirements for mobile devices which

include ABM (Apple Business Manager) enrollment for the Intune configuration. No other operating system meets the security and integration standards set forth by the Department. Devices must be readily available locally to meet the urgency of the requirement for ODP operations.

6. A description of efforts made to ensure that offers are solicited from as many potential sources as is practicable, including whether a notice was or will be publicized as required by [subpart 5.2](#) and, if not, which exception under [5.202](#) applies.

The requirement for iOS compatibility limits the viable sources for this procurement. There are no alternate sources for this requirement. All quotes from local authorized Apple dealers/resellers will be considered. The JOFOC may be published in SAM.gov (GPE) if required.

7. A determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

The cost will be fair and reasonable based on current market prices for Apple products and accessories

8. A description of the market survey conducted and the results or a statement of the reasons a market survey was not conducted.

A market survey indicated that Apple products are predominantly supplied through authorized Apple resellers, and the pricing has been consistent with market rates for such specialized products

9. Any other facts supporting the use of other than full and open competition.

The requirement for iOS devices is essential to maintain compatibility with existing infrastructure and security protocols established by the Department of State.

10.A listing of sources, if any, that expressed, in writing, an interest in the acquisition.

None at this time

11.A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

None at this time.

CERTIFICATIONS
Requirements Office

I certify that this submission is accurate, and that it contains complete information necessary to enable other officials to make an informed recommendation for approval or disapproval.

X

Lauer, John (Signed)

certify that this justification is accurate and contains complete data necessary to support the recommendation for other than full and open competition.

X

Contracting Officer (Signed)